

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005174

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JOHN CARNEY, ET AL	
vs.	
DEFENDANT: BCF I TAM RIDGE LP	

NATURE OF PROCEEDINGS: 1) MOTION – OTHER: JUDGMENT ON THE PLEADINGS
2) MOTION – PROTECTIVE ORDER – DISCOVERY FACILITATOR PROGRAM

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

The matter is on for further case management and results of mediation on September 21, 2026, at 9 a.m. in this department.

The hearing in the Motion for Judgment on the Pleadings and Motion for Protective Order is off calendar and will be reset if the parties are unable to reach a settlement.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005365

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: BELLA MCDOWELL, ET ALL	
vs.	
DEFENDANT: BCF I TAM, RIDGE LP	

NATURE OF PROCEEDINGS: 1) MOTION – OTHER; JUDGMENT ON THE PLEADINGS
2) MOTION – PROTECTIVE ORDER -DISCVOERY FACILITATOR PROGRAM

RULING

This matter was called for case management on July 8, 2026, with Counsel for the Defendants, Elizabeth Vanalek, appearing. There was no appearance by Plaintiff. Counsel represents that the parties have scheduled a mediation for August 19, 2026, and are hopeful a universal settlement will be reached. The court accepts this representation by counsel as an officer of the court.

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IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.